Brazoria County District Court

Cause No. 2024-CV-0046

Matthew Blevins, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Matthew Blevins

Date:	April 5, 2025
Location:	Offices of Morris & Miller LLP
Examining attorney:	Marilyn Fox, Ashford & Lyle LLP
Defending attorney:	Hannah Bell, Morris & Miller LLP

Q: Please state your full name for the record.

A: I'd rather not have my full name read into this, but you can refer to me as the plaintiff.

Q: Understood. Have you ever given a deposition before?

A: No, this is my first time.

Q: Then let me explain the process. I'll ask questions, you answer them as truthfully as you can, and if you don't understand something, just say so. Is that clear?

A: Yes, that's clear.

Q: Tell me about the afternoon of the collision in the parking lot in Conroe, Texas. Where were you headed?

A: I was going to a grocery store off the main road. I had just pulled into a parking space and was backing out when another vehicle came down the aisle.

Q: How fast do you believe the other vehicle was moving?

A: It wasn't going fast, maybe walking speed or a little faster. But it hit the rear corner of my car pretty solidly.

Q: Did you see the other driver before the impact?

A: Not really. I was looking over my right shoulder at the cart return area, and I didn't see the car until the moment it hit.

Q: After the collision, what did you notice first about your body?

A: My neck. It snapped forward and then back, and within an hour it was stiff and sore. By that evening I had a dull ache running into my shoulders.

Q: Did you seek medical care?

A: Yes. I went to an urgent care clinic the next morning, and then I was referred to my primary care doctor for follow-up.

Q: What treatment have you received for your neck?

A: They diagnosed a cervical strain. I've been doing phyiscal therapy twice a week, using heat packs at home, and taking anti-inflammatory medication when the pain flares up.

Q: Has the pain changed since then?

A: It's improved some, but I still get stiffness when I turn my head quickly, and I can't sit in a car for long periods wtihout discomfort.

Q: How has this affected your daily routine?

A: I used to garden on weekends and play in a recreational volleyball league. I've had to stop both for now. Lifting groceries or laundry baskets also aggravates it, so my husband helps more around the house than he used to.

Q: Have you missed any work because of the injury?

A: I've taken some time off for appointments, and on a couple of bad days I couldn't concentrate at my desk because of the pain.

Q: Before this collision, had you ever injured your neck or received treatment for neck pain?

A: No, not to my knowledge. I'd never had any problems like this.

Q: Thank you. I have no further questions at this time.